

KNOW YOUR CUSTOMER (KYC) CHECKLIST - 2025

*In addition to obtaining KYC documents, documentary evidence of Account Funding may be required
(See Additional Guidance Section)*

SECTION A: INDIVIDUAL ACCOUNTS

<u>A.1</u> Resident Nationals of ECCU¹ Territories	1. Identification One form of Valid (Unexpired) Government-Issued Picture Identification • Passport • National Identification Card • Social Security card • Driver's license • Voter's card 2. Residential Address NO PROOF OF ADDRESS REQUIRED: a. For Saint Lucian Nationals and Residents Unless Customer type is listed in No. 4 of the Additional Guidance Section of this Checklist b. WHERE PROOF OF ADDRESS IS REQUIRED: Confirmation of Residential Address by way of any one of the following documents • Original utility bill in the Customer's Name <i>dated within the last 3 months</i> • Tenancy agreement in the Customer's Name • Reference Letter from a Regulated Financial Institution stating Permanent Residential Address. <i>(The relationship must be in existence for at least 1 year);</i> • Letter from Employer Confirming Address • For persons with combined living arrangements, a letter issued by the utility bill owner, along with copy of the ID of utility bill owner, and the original utility bill dated within the last 3 months. • Bank statement issued within the last three (3) months showing the customer's address. Specific to Minors • <i>Accounts on behalf of minors with no picture identification, the parent/ legal guardian would be subject to standard KYC requirements</i> • <i>Birth certificate of minor</i>
<u>A.2</u> Resident Nationals of CARICOM (except ECCU territories)	1. Identification One Form of Valid (unexpired) Government Issued Identification: • Passport and • Driver's License or National identification Card 2. Residential Address Confirmation of Residential Address as listed under Section A1 is required where the customer does not reside in St Lucia.
<u>A.3</u> Non-Nationals/ Residents Outside CARICOM	1. Identification Two forms of valid (unexpired) Government Issued Identification (As listed in A1.1) 2. Confirmation of address As listed under Section A1. B

¹ ECCU Nationals should be treated in a similar manner to Saint Lucian Nationals i.e., the same requirements will apply



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SECTION B: BUSINESS ACCOUNTS	
<u>B.1</u> Self – Employed Individuals	1. Identification - One (1) form of Government-Issued Picture Identification in the case of Nationals/Residents of ECCU and CARICOM. - Two (2) forms of Government- Issued Picture Identification in the case of Non-Nationals/ Residents Outside of CARICOM 2. Residential Address Confirmation of Residential Address as listed in Section A.
<u>B.2</u> Sole Proprietorship / Registered Business	- Certificate of Registration of Business Name - Statement of Particulars - Full KYC requirements for the Registered Owners, Signatories, and Individuals with Power of Attorney for registered owners and Signatories, where applicable. <i>(Refer to Government-Issued Picture Identification and Confirmation of Residential Address under Section A)</i>
<u>B.3</u> Partnerships	- Certificate of Registration of Partnership - Memorandum & Articles of Partnership - Letter/Resolution authorizing the opening of the bank account along with the names of the authorized Signatories and their signing authority. - Full KYC documentation for General Partners, Limited Partners with more than 25% interest, all Authorized Signatories and Individuals who represent them with Power of Attorney (where applicable). <i>(Refer to Government-Issued Picture Identification and Confirmation of Residential Address under Section A)</i>
<u>B.4</u> Companies / Unlisted Corporations <i>Either A or B, All of C, D & E where applicable</i>	A. For New Companies incorporated less than 1 year - Filed Most recent Notice of Directors - Filed Return of allotments/Register of shareholders - Filed Notice of Secretary (in cases where the Secretary is authorized to provide instruction on behalf of the company as per Bye-Laws) - Filed Notice of Registered Address - Filed Notice of Beneficial Owners (BO) B. For Companies in existence for more than 1 year - Most Updated Annual Returns, or Registered documents evidencing the BOs and Directors (where applicable) C. For Both New and Existing Companies - Certificate of Incorporation - Articles of Incorporation <i>(or any other Articles of formation)</i> - Articles of Association or Memorandum of Association or Bye Laws - Board resolution authorizing the opening of the account, and advising of the Signatories and their signing authority. - For companies operating within a group, provide a Certified Copy of Corporate Structure Chart, identifying the Individual(s) who are the Ultimate Controlling Person/ Beneficial owner of the structure, with attestation that the structure is a true replica of the actual structure. D. Where Applicable - Power of Attorney or other authorities given by the Directors in relation to the Company Valid Trade License E. Identification Documents for the following <i>(Refer to Government-Issued Picture Identification under Section A):</i> - Beneficial Owners <i>(any person directly or indirectly holding 25% or more of the shares of the subscribing company or who exercised ultimate effective control)</i> <i>Request Address Confirmation documentation only for Beneficial Owner(s) and all Authorized Account Signatories</i>

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<u>B.5</u> Companies/ Corporations (Listed) <i>Either A or B, All of C & E, and D where applicable</i>	<i>A.For New Companies</i> 1. Beneficial Owners and Directors: a. Visit Company Website for Information on Beneficial Owners and Directors where applicable) or obtain; b. Filed Notice of Beneficial Owners c. Filed Notice of Directors 2. Filed Notice of Registered Address <i>B.For Companies in existence for more than 1 year</i> 1. Beneficial Owners and Directors: a. Visit Company Website for Information on Beneficial Owners and Directors (where applicable) or obtain; b. Most Updated Annual Returns <i>C.For Both New and Existing Companies</i> 1. Certificate of Incorporation 2. Articles of Incorporation (or any other Articles of formation) 3. Articles of Association or Memorandum of Association or Bye Laws 4. Board resolution authorizing the opening of the account, and advising of the Signatories and their signing authority. For companies operating within a group, provide a Certified Copy of Corporate Structure Chart, identifying the Individual(s) who are the Ultimate Controlling Person/Beneficial owner of the structure, with attestation that the structure is a true replica of the actual structure. <i>D. Where Applicable</i> 1. Power of Attorney or other Authorities given by the Directors in relation to the Company 2. Valid Trade License 3. Registration of External Company <i>E. Identification Documents for the following (Refer to Government-Issued Picture Identification under Section A):</i> • Beneficial Owners (any person who exercises ultimate effective control over a company) • Directors • All Authorized Signatories • Power of Attorney Holder(s) or other individuals with authority to give instructions <i>Request Address Confirmation documentation only for Beneficial Owner(s) and all Authorized Account Signatories</i>
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<u>B.6</u> International Business Companies <i>Either A or B, All of C & E, and D where applicable</i>	A. For New Companies 1. Register of Directors 2. Register of shareholders 3. Register of Secretary 4. Notice of Registered Address B. For Companies in existence for more than 1 year 1. Most Updated Annual Returns or Registered documents evidencing the BOs and Directors C. For Both New and Existing Companies 1. Certificate of Incorporation 2. Articles of Incorporation 3. Memorandum of Association or Articles of Association or Bye Laws 4. Register of Beneficial Owners 5. Board resolution authorizing the opening of the account, the Signatories and their signing authority. 6. For companies operating within a group, provide a certified copy of Corporate Structure Chart, identifying the individuals(s) who are the ultimate controlling person/beneficial owner of the structure with attestation that the structure is a true replica of the actual structure. D. Where Applicable 1. Power of Attorney or other authorities given by the Directors in relation to the Company 2. Valid Trade License E. Identification documents for the following (Refer to Government-Issued Picture Identification under Section A): • Ultimate Beneficial Owners (<i>any person directly or indirectly holding 25% or more of the shares of the subscribing company or who exercises ultimate effective control over a company</i>) • Directors • All Authorized Signatories • Power of Attorney Holder(s) or other individuals with authority to give instructions <i>Request Confirmation of Address documentation only for the Beneficial Owner(s) and all Authorized Account Signatories</i>
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<u>B.7</u> Statutory Body/ Council/ Authority/ Board/ Foundation/ Trust/ Committee/ Commission <i>(Any local government established institution funded in part or solely by the local government/ public funds)</i>	- Formation and governing documents of the entity (Act/Legislation/Constitution/By- Laws) - Document evidencing Directors/Council Members who have oversight for the Entity, in line with the Bye Laws or Governing Legislation - One of the three (where applicable): - Letter signed by Accountant General: - Authorizing the opening and the operation of the bank account or; - Indicating that the Accountant General's authorization is not required to open and operate the account - Letter from the relevant Government Minister authorizing the opening and operation of the account based on the governing document (where applicable) - Resolution of the Board of Directors authorizing the opening of the account, the Signatories and their signing authority. - One (1) form of picture identification for directors and signatories <i>(Refer to Government issued picture identification under Section A)</i> Specific to Trusts - Certificate of Trust clearly identifying the Settlor, Trustee, Protector (if any), Beneficiaries and any other Natural Person(s) exercising ultimate effective control over the Trust. - Full KYC documentation for Settlor, Trustee, Protector (if any), Beneficiaries and any other Natural Person(s) exercising ultimate effective control over the Trust. <i>(Refer to Government-Issued Picture Identification and Confirmation of Residential Address under Section A)</i>
<u>B.8</u> Banks and Other Financial Institutions	- All documents as required for Listed <i>(Section B.4)/</i> Unlisted Companies <i>(Section B.5)</i> (as may be applicable) - Completed AML Questionnaire - License to operate - Identification documents for Signatories and Directors <i>(Refer to Government-Issued Picture Identification and under Section A)</i>
<u>B.9</u> Non-Governmental Organizations	- Formation documents: - Bye laws or Constitution or; - Certificate of Registration - Most Updated Annual Returns (in the case of an Incorporated NGO/ NPO) - Certificate of Continuance/Good Standing - Board resolution/ or Equivalent authorizing the opening of the account, the Signatories, their signing authority and the list of current Directors. - Identification document for Directors <i>(Refer to Government-Issued Picture Identification under Section A)</i> - Full KYC documentation for Signatories <i>(Refer to Government-Issued Picture Identification and Confirmation of Residential Address under Section A)</i>
<u>B.10</u> Embassy or Consulate	- Embassy acceptance letter from Government of Saint Lucia - Letter from Embassy indicating Signatories and other key account stakeholders, where applicable - Full KYC documentation for Signatories and Key Account Persons <i>(Refer to Government-Issued Picture Identification and Confirmation of Residential Address under Section A)</i>



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<u>B.11</u> Cooperatives Societies	- Formation documents: - Bye laws or Constitution - Certificate of Registration or Gazette publication of the registration of the co- operative society - Filed Notice of Directors - Board resolution authorizing the opening of the account, the Signatories and their signing authority - Identification documents for Signatories and Directors (<i>Refer to Government-Issued Picture Identification under Section A</i>) - Confirmation of Address for all Signatories (except Credit Unions) <u>Specific to Financial Cooperatives (e.g. Credit Unions):</u> - Letter of Acknowledgement of Directors with their full names from the Regulator - Letter of Good Standing from the Regulator Where applicable: - Certificate of Change of name issued by Registrar of Cooperatives - Certificate of Continuance - Certificate of Revival
<u>B.12</u> Trade Unions & Employer's Organizations	- Formation documents: - By-laws or; - Constitution - Certificate of Registration issued by Registrar of Trade Unions and Employer's Organizations - Most Updated Annual returns - Letter/Board resolution authorizing the opening of account, along with the authorized Signatories and their signing authority - Identification documents for Signatories and Directors (<i>Refer to Government-Issued Picture Identification under Section A</i>)
<u>B.13</u> Religious Bodies	- Formation documents - Bye laws/Constitution/Act of Parliament - Certificate of endorsement from relevant governing agent - Letter/ Resolution authorizing the opening of the account, the Signatories and their signing authority - Notice of Directors (where applicable) - Notice of Secretary (where applicable) - Identification documents for Signatories and Directors (<i>Refer to Government-Issued Picture Identification under Section A</i>) - Full KYC documentation for Signatories (<i>Refer to Government-Issued Picture Identification and Confirmation of Residential Address under Section A</i>) Where applicable - Letter of endorsement from Head Organization
<u>B.14</u> Non-Financial AML Reporting Entities	- Depending on Registration Type, Formation and Director/ BO evidentiary documents as required for the applicable Entity Types listed above - License to operate and AML Certificate of Registration issued by the FIA, where applicable - Full KYC documentation for Signatories (<i>Refer to Government-Issued Picture Identification and Confirmation of Residential Address under Section A</i>)

Ayanna Caesar

Name

Signature

20/02/2025

Date

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ADDITIONAL GUIDANCE

1. Verifying Source of Funding and Customer Information

Source of Funding

- Request volume of currencies and total sales
- List of major customers and suppliers
- Verification of source of wealth
- Letter providing a clear description of the customer's business activity
- Bank Statements
- Job letter
- Site Visit

Customer's Personal Information (Full Name & Residential Address)

- Written confirmation from a regulated financial institution of customer's full name and accounts held.
- Divorce Decrees
- Property Tax Statement
- Insurance policies
- Loan statements
- School transcripts

2. Other Financial Institutions

These Entities include:

- Long Term Insurance Companies, Insurance Agents and Insurance Brokers
- Securities Brokers
- Money Services Businesses (including Money Remitters and Micro-Lenders)
- Virtual Assets Service Providers
- Mutual Funds
- Entities that engages in the Sale of Money Orders

3. Non-Financial AML Reporting Entities

These Entities include:

- Attorneys-at-Law & Accountants – undertaking the following activities on behalf of their clients
 - Buying and selling real estate
 - Creating, operating or managing companies
 - Managing bank, savings or securities accounts
 - Managing client's money, securities or other assets
 - Raising contributions for the creation, operation or management of companies
- Real Estate Agents – Those who undertake buying and selling commercial real estate on behalf of their clients
- Dealers in Precious Metals & Stones (Jewelers)
- Motor Vehicle Dealers - Providing the service of selling new and used motor vehicles
- Trust and Company Service Providers (including Registered Agents and Trustees)
- Casinos and Internet Gaming and Wagering Services (This excludes CAGE)

4. High Risk Nationals/Resident Customers

High Risk Customer types include but are not limited to:

- PEPs and Close Associates of PEPs
- Citizenship obtained through the Citizenship by Investment Programme
- Non-Face-to-Face Customers (Digital Branch Customers)
- Any other customer types that may be identified by RMCS from time to time

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5. Other Company Documents

Based on changes made after formation and prior to the Annual Returns, or between the period of Annual Returns, the following Change documents are required

- Certificate of Change of Name
- Articles of Amendment or Certificate of Amendment
- Certificate of Good Standing if the company has been in existence for more than 1 year.
- Notice of Change of Directors
- Change of Registered Address
- Notice of Change of Secretary
- Notice of Change of Beneficial Ownership

6. FATCA Forms:

- W9 required for US persons - Individuals/Entities
- W8Ben required for Non-US individuals with US indicia
- W8BENE required for Non-US entities with US beneficial owners

7. CRS Forms:

- Individual Self-Certification required for individual customers
- Controlling Persons Self Certification required for controlling persons of entity
- Entity Self-Certification required for Entities
- Directors are not required to complete personal CRS Forms and Individual Account Mandates

8. Translation of Foreign Documents

- Where documents are not in English a notarized translation is required. A suitable/accredited translator may be an Ambassador/Consular of the country where the documents were issued. The translator or the translation company must certify that the written translation is an accurate and true translation of the original. It must bear the date the translation was made, the translator's signature, stamp and seal of the translation company and the translator's full name and contact information or that of the translation company's representative.

9. Acceptance of Notarised Documents

- The Certifier of copies of Identification Documents must state that it is a true copy of the original and that the photo is a true likeness of the individual where a photograph is or form part of the documentation being certified. A Certifier may be a suitable person, such as a lawyer, accountant, director or manager of a Regulated Credit or Financial Institution, A Notary Public, Justice of the Peace or a member of the judiciary. The Certifier should sign the copy document (printing/his/her name clearly underneath) and clearly indicate his/her position or capacity, together with a contact address and phone number and date.
- The notarized copy of the Identification Documents referenced under **Individual**, should clearly display all the contents of the original, with special attention to the quality of the copy of the photo.
- A Lawyer / Notary Royal must notarize all non-original KYC documents not presented at the time of the transaction in accordance with the guidelines stated in point #8.
- Non-original KYC documents for existing customers does not require to be notarized.